

Protection of Personal Information Act 4 of 2013

PROTECTION OF PERSONAL INFORMATION ACT 4 OF 2013 (POPIA)

Purpose

To give effect to the constitutional right to privacy by safeguarding personal information when processed by a responsible party, subject to justifiable limitations aimed at balancing the right to privacy against other rights, particularly the right of access to information, and to regulate the flow of personal information across the borders of the Republic.

Eight conditions for lawful processing (Chapter 3)

1. Accountability
2. Processing limitation (lawfulness, minimality, consent / justification)
3. Purpose specification
4. Further processing limitation
5. Information quality
6. Openness
7. Security safeguards
8. Data subject participation

Special personal information (s 26–33)

Processing of information concerning religious or philosophical beliefs, race or ethnic origin, trade union membership, political persuasion, health or sex life, biometric information, or criminal behaviour is prohibited unless a ground in s 27 applies (e.g. consent, establishment of a right or obligation in law, medical treatment by a health professional).

Information Regulator

An independent juristic person with powers to monitor and enforce compliance, handle complaints, and issue codes of conduct and enforcement notices.

Direct marketing by electronic means requires opt-in consent except for existing customers under limited conditions (s 69).

Cross-border transfers (s 72)

Personal information may only be transferred outside the Republic if the third party is subject to a law, binding corporate rules or binding agreement providing an adequate level of protection, or another ground in s 72 applies.

NOTE: Educational summary for SA research demo. Not a substitute for the official Act or legal advice.

— End of curated extract. Verify official text before reliance. —